Letter Ruling

DEPARTMENT OF REVENUE
STATE OF MISSISSIPPI

17917 4 5

Date: September 15, 2026
Letter ID: L1807584416

WARRIORS CENTER FOR WOMEN NEW ALBANY
1645 HIGHWAY 178 W
MYRTLE MS 38650

Reference: Sales Tax Exemption
Letter Ruling Number: 26-0488

This is in response to your letter dated September 14, 2026, requesting that the Mississippi Department of Revenue provide a ruling regarding whether Warriors Center for Women New Albany is exempt from Mississippi sales and use tax. Your request has been assigned the letter ruling number listed above. Please use this number in any further correspondence with the DOR concerning this request.

Warriors Center for Women New Albany does qualify for sales tax exempt status pursuant to Miss. Code Ann. Section 27-65-111(aa). This Section provides that sales of tangible personal property to nonprofit organizations that provide residential rehabilitation for persons with alcohol and drug dependencies are exempt from sales tax if the organization is exempt from federal income taxation under Section 501(c)(3) of the Internal Revenue Code. As a prerequisite to exemption, the sale of property or charge for services must be sold directly to, billed directly to, and paid for directly by the exempt entity. This exemption does not apply to sales of tangible personal property or services to employees of the exempt entity, even if the employee may be reimbursed for the expense by the exempt entity.

This exemption does not apply to sales of tangible personal property or services to contractors purchased in the performance of contracts with the exempt entity, even if the contractor may be reimbursed for the expense by the exempt entity. Furthermore, this exemption does not apply to Contractor's Tax levied by Miss. Code Ann. Section 27-65-21.

You may use a copy of this letter in order to substantiate Warriors Center for Women New Albany's exempt status. I trust that this is the information you were requesting. Should you have any additional questions, feel free to contact this office at (601) 923-7015.

Under Miss. Code Ann. Section 27-65-85(a), it shall be unlawful for any person to use an exemption authorized under the Sales Tax laws for the purpose of avoiding the payment of tax the person is required to pay by law. Any person violating this provision shall be guilty of a misdemeanor and, on conviction thereof, shall be fined not more than Five Hundred Dollars ($500.00), or imprisoned not exceeding six (6) months in the county jail, or punished by both such fine and imprisonment, at the discretion of the court.

This letter ruling is based on the specific facts and circumstances that you communicated to the DOR. This ruling is not binding on the DOR if these facts and circumstances are inaccurate, contain a material omission of a relevant fact or facts to the issue(s) presented or if such facts and circumstances change. This letter ruling is also only valid for seven (7) years from the date of this letter. At the end of this seven (7) year period, you are free to update your information and request another letter ruling if you wish. This ruling is only applicable to you or to your client if you are requesting this ruling on behalf of another and can only be relied upon by the person for whom the ruling was requested.

If the facts and circumstances presented in your request are accurate, complete and do not change for the seven (7) year

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period indicated above, the person for whom it was requested can rely upon this ruling unless and until there is a change in the law or regulation or the issuance of judicial decision that indicates the ruling is no longer correct or the DOR retracts the ruling. The DOR does reserve the right to retract this ruling if it later determines on its own review that the ruling is incorrect. Such retraction will be in writing and the effect of the retraction will be prospective from the date of the retraction letter.

Sincerely,

Phillip Griffin
(601) 923-7194
Mississippi Department of Revenue

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